

SEPARATE OPINION BY SIR CECIL HURST.

I accept the answers which the Court is giving to the questions put to it by the Council, but I am not satisfied with some of the reasoning on which those answers are based, and therefore prefer to explain my own point of view.

I.

I share the view that Article 104 (5) of the Treaty of Versailles is purely negative in character in the sense that it does not establish any standard of comparison for the application of the prohibition of discrimination. What is prohibited is *any* discrimination, i.e. any measure or action which placed Poles (whether Poles by nationality, by origin or by language) in a position of inferiority to any other category of persons in Danzig whatsoever.

I do not share the opinion stated on page 29 of the Opinion that the Polish thesis is that this stipulation prohibits discrimination against Poles as compared with Danzig citizens of German origin, and on page 29 that this contention adds a very important element, viz., a standard of comparison which is not borne out by the text. The Polish contention as formulated at page 23 of the Polish Mémoire is as follows :

“Les mots « aucune discrimination » confèrent à cette stipulation la portée la plus générale et la plus absolue ; ils indiquent que l'interdiction du traitement différentiel embrasse indistinctement tous les domaines et tous les cas possibles.”

It is difficult to see how this differs from the standpoint adopted in the Opinion of the Court. It is true that the Polish Government in its notes and in the arguments has claimed repeatedly that the clause prohibits discrimination as compared with Danzig citizens who are not Poles, but this is

because the claim of the Free City has been that it was only discriminatory treatment to the prejudice of Polish citizens as against other foreigners which was prohibited. Poland therefore has been claiming with equal insistence that the prohibition covered discrimination as compared with Danzig citizens.

It is true that in many cases absence of discrimination will result in national treatment or equal treatment (*égalité de traitement*) but not in all. It will only do so in the domain which is covered by the word "*traitement*". "*Égalité de traitement*" does not imply equality of status. Even where "*égalité de traitement*" occurred, it would not mean that all differences would be swept away at Danzig between Polish citizens and Danzig citizens.

The stipulation which the Court has to interpret is that of a prohibition of discrimination; that is all that under Article 104 (5) of the Treaty of Versailles and [under Article 33 (1), second sentence, of the Convention of Paris Poland is entitled to claim. She is entitled to claim it whether it does or does not result in equality of treatment. If in fact—and the existence of discrimination is a question of fact—there is no discrimination, Poland can have under the above treaties no claim to equal treatment. If in fact, in respect of any particular matter, absence of discrimination would result in equal treatment, equal treatment will be what she is entitled to claim for her citizens, but the basis of the claim will be that some inequality of which she complains is the result of discrimination.

Exaggerated attention has been devoted in the pleadings and arguments to the notes of November 5th and 6th, 1920, between the Danzig delegation and the Conference of Ambassadors. It appears that, when the terms of Article 33 of the Convention of Paris became known at Danzig, they led to some suggestions by ill-informed persons in the Constituent Assembly that the effect would be to give Polish citizens at Danzig political rights in the Free City, and the Danzig delegation asked the Conference of Ambassadors if this view was correct. The Conference of Ambassadors very properly replied that it was not correct. Why it should be

assumed on the one side that in putting the question the Danzig delegation must have approached the subject on the basis that equality of rights was to exist in every other respect, and on the other side that the acceptance by Poland of the ruling that her citizens at Danzig were not to be entitled to political rights should vitiate her whole claim is not apparent. Both conclusions appear to be equally ill-founded. Political rights (e.g. the right to vote and the right to be elected) are rights which normally are reserved to nationals, and are so reserved at Danzig. An absence of discrimination at Danzig to the prejudice of Poles—even if it leads in many cases, perhaps in most cases, to equality of treatment—cannot convert those of the Poles who are foreigners into Danzig citizens.

The important point is that the discrimination to the prejudice of Polish citizens which is prohibited by Article 104 (5) of the Treaty of Versailles and Article 33 (1) of the Paris Convention covers discrimination to their prejudice as compared with Danzig citizens, and is not limited to discrimination to their prejudice as compared with other foreigners. Consequently, where absence of discrimination results in equality of treatment, it is equality as between Polish citizens and Danzig citizens, and not only as between Polish citizens and other foreigners.

II.

In the second of the questions on which the opinion of the Court is asked, the Court is required to state what is the exact interpretation of Article 104 (5) of the Treaty of Versailles and of Article 33 (1) of the Convention of Paris. As the present dispute has arisen out of the question of the treatment of Polish nationals and persons of Polish origin and speech at Danzig, I should myself have assumed that what the Council desired was an interpretation of the sentence to be found in paragraph 5 of Article 104 and repeated in Article 33 of the Convention of Paris: "to provide against

any discrimination within the Free City of Danzig to the detriment of citizens of Poland and other persons of Polish origin or speech". The Opinion of the Court deals however also with the meaning and effect of the introductory words at the beginning of Article 104, which provide for the negotiation by the Principal Allied Powers of the Convention subsequently concluded at Paris on November 9th, and also with the question of the extent to which Article 104 (5) is, apart from Article 33 of the Convention of Paris, binding upon the Free City.

As the Opinion of the Court arrives at the conclusion that Article 104 (5) of the Treaty of Versailles is made binding on the Free City by virtue of its reproduction in Article 33 of the Convention of Paris, I doubt whether the above parts of the Opinion dealing with the questions indicated in the preceding paragraph are essential, but I feel bound to refer to them because I do not think that I can accept in full the statements they contain.

The Opinion says that the objects of the proposed treaty set out in Article] 104 are merely general principles, and that these had to be delimited by more precise terms in a future treaty. This conclusion is in part deduced from the fact that on May 5th, 1920, the Conference of Ambassadors described Articles 102 to 107 of the Treaty as setting out the "*grandes lignes*" of the régime at Danzig, and in part from the fact that Article 104 contains a mandate given by the signatories of the Treaty and accepted by the Principal Allied and Associated Powers to negotiate a treaty with the objects there set out.

It is clear that the introductory words of Article 104 exclude all doubt as to the right and the duty of the Principal Allied and Associated Powers to negotiate the terms of the proposed treaty between Danzig and Poland, but Article 104 of the Treaty of Versailles has a more far-reaching effect than the Opinion of the Court suggests.

The sovereignty over the Danzig territory was ceded by Germany in the Treaty of Versailles to the Principal Allied and Associated Powers. It was they who by Article 102

agreed to establish Danzig as a Free City under the protection of the League of Nations and with a Constitution guaranteed by the League (Art. 103). By Article 104 a convention between Poland and Danzig was to come into force at the moment that the Free City came into being with certain specified objects, and the Principal Allied and Associated Powers undertook to negotiate this convention. The pledge given by the Principal Allied and Associated Powers is not a mandate in any ordinary sense of that term. They received no charge from some higher authority to negotiate a treaty. What Articles 102, 103 and 104 do is to set out the terms and conditions on which Danzig was to be brought into being by the new sovereigns of the territory. One of these conditions was that, from the moment when she came into being, the Free City was to be subject to certain guarantees in favour of Poland which were to be embodied in a treaty; consequently, subjection to these treaty stipulations is one of the conditions of the Free City's existence.

When the Principal Allied and Associated Powers, by the instruments which they signed on October 27th, established the Free City of Danzig "upon the terms and conditions laid down in the said Treaty", and when the Free City accepted the provisions of this instrument, the result was that the Free City by its representatives assented to the establishment of the Free City on the terms set out in the Treaty of Versailles, including the condition that there should exist a treaty fulfilling the purposes specified in Article 104.

Article 104 is therefore not a mere transitory or ephemeral provision which passed out of existence when the new convention was concluded. It is much more. Its paragraphs constitute, as they were described by Viscount Ishii in his report of November 17th, 1920, "the restrictions limiting the political independence of the Free City which are the outcome of the Treaty of Versailles".

As between Poland and Danzig, it is no doubt to the Convention of Paris that the Parties would appeal in the first case to establish their rights, but it is equally clear that the paragraphs of Article 104, including paragraph 5, were intended

to remain in operation. No clearer proof of this can be found than the Constitution of Danzig itself, which as regards matters on which Poland was to enjoy certain rights and attributions—such as the conduct of the foreign affairs of the Free City—makes reference not to the Convention of Paris but to the Treaty of Versailles; see, for instance, Article 41: “The Senate shall represent the Free City of Danzig in so far as this is not contradictory to the stipulations providing for the conduct of the foreign relations of the Free City of Danzig by the Polish Government in accordance with Article 104, paragraph 6, of the Treaty of Peace of Versailles.”

Reference is made in the Opinion of the Court to a report adopted by the Council of the League on July 7th, 1923, as to the relations between the Treaty of Versailles and the Convention of Paris, but the extract which is quoted is quite consistent with what is said above. The adoption and the contents of this report were the outcome of a dispute in which Poland maintained that she could ignore the Convention of Paris in case there was any divergence between it and the Treaty of Versailles (see *Official Journal*, August 1923, p. 884, July 4th). This was a view which, not unnaturally, the Council was not disposed to uphold.

The report of Viscount Ishii referred to above shows that, when considering whether it should place the Constitution of Danzig under the guarantee of the League of Nations, the Council considered that the Free City was bound by the Treaty of Versailles. The report mentions the need of ensuring (at Danzig) “a government which will carry out its duties in accordance with the principles on which the Free City has been constituted and likewise the obligations which have been imposed upon it by the Peace Treaty of Versailles”.

It is equally clear that the Council determined its attitude to the Constitution upon the basis that for Poland also the relevant part of the Treaty of Versailles remained in force, as the preceding paragraph of the report says: “It is of course understood that it [the Free City] would accept in their entirety the terms of the Treaty of Versailles and the rights which this Treaty confers upon Poland.”

I have felt it necessary to express my view on this point because of the importance of the question, though the sentence on page 33 of the Opinion of the Court: "The conclusion of the Convention does not in any way impair the legal value of Article 104 of the Treaty as an authentic expression of the mandate conferred on the Principal Allied and Associated Powers and of the objects of the Convention; from this point of view and to this extent the article is enforceable in respect of the Free City", makes me feel that my view differs in no fundamental respect from that set out in the Opinion of the Court.

It seems to me improbable that, when the Council of the League asked the Court for an opinion as to the interpretation of Article 104 (5), it had in mind more than the words in paragraph 5 itself, as these are the words which are repeated in Article 33 of the Convention of Paris and to which the phrase is added: "in accordance with Article 104, paragraph 5, of the Treaty of Versailles". Certainly in Article 33 the words "Article 104 (5)" can have no reference to the so-called "mandate" of the Powers, for the article would not make sense if it meant "to provide against any discrimination in accordance with the mandate conferred upon the Powers to negotiate a treaty with the objects of....". This confirms my view that the question of the relation between the Treaty of Versailles and the Convention of Paris is not relevant to the interpretation of paragraph 5 of Article 104 of the Treaty of Versailles and to that of Article 33 of the Convention of Paris.

III.

With regard to the interpretation of Article 33 of the Convention of Paris, the Opinion of the Court arrives at the conclusion, page 40, that the article embodies two undertakings. With that view I agree. But when the article is divided so as to distinguish the two undertakings, the text becomes so clear that a reference to the "*travaux préparatoires*" of the Convention seems scarcely justifiable.

The first undertaking of the Free City is to apply to "minorities" in Danzig provisions similar to those applied

in Poland under Chapter I of the Minorities Treaty of 1919. The only doubt here is as to whether this undertaking obliges the Free City to assure to Polish nationals, as well as to the rest of the inhabitants, the full and complete protection of life and liberty and the free exercise of their religion provided for by Article 2. The doubt is due to the question whether the word "minorities" includes foreigners. As the Constitution of Danzig assures greater rights to all the inhabitants than those provided for in Article 2, and as it is agreed that the guarantee of the Constitution by the League of Nations implies that the constitutional life of Danzig must always be in accordance with the terms of the Constitution, the question whether Poland is entitled to claim on behalf of her nationals at Danzig the benefit of Article 2 is only of theoretical interest.

The second undertaking in Article 33 is a repetition, with certain unimportant variations in language, of the rule laid down in paragraph 5 of Article 104 of the Treaty of Versailles. The result is that the sentence embodies a reaffirmation of the non-discrimination principle, but with the difference that it now becomes a direct treaty obligation of the Free City, and not merely a condition of the Free City's existence resulting from the establishment of the Free City on the terms and conditions laid down in the Treaty of Versailles.

The variations in the wording between the phrase as to non-discrimination in Article 33 and in paragraph 5 of Article 104 are unimportant. As regards the duties of the Free City, the obligations under the one are the same as under the other, no more, no less. Once more, so far as absence of discrimination results in equality of treatment, Poland is entitled to claim such equality at Danzig for her citizens and also for Poles by origin or language, but the existence of discrimination—a fact to be proved—must be the basis of the claim.

As I have said above, the text of Article 33 is to me so clear that I should hesitate to refer to the "*travaux préparatoires*"; but the history of the article is interesting.

There is one fact which is to me of considerable importance which is not mentioned in the passages in the Opinion of the Court dealing with the drafting of this article. It emerges only in another part of the Opinion.

As is stated in the Opinion of the Court, when the Conference of Ambassadors got to work on the text of the Convention of Paris, it had before it drafts prepared by both delegations dealing with the matters covered by Article 104 (5) of the Treaty of Versailles. The draft prepared by the Conference took but small account of the drafts submitted by the two delegations. Article 30 as it figured in the Conference drafts of October 16th and 20th did no more for Poles at Danzig than give them the benefit of Chapter I of the Minorities Treaty of 1919. It is also clear from their letter of October 20th and from the text of the article itself that the Conference of Ambassadors thought that this was all that was necessary to give effect to Article 104 (5) of the Treaty of Versailles. The point that is not made clear in the Opinion of the Court is that Poland refused to accept this draft. Her refusal is only mentioned incidentally at page 15. Poland proposed and obtained amendments, and one of those amendments was important. It was the suppression of the words "*à l'effet de*" between the two sentences of which the draft paragraph was composed. The effect of the suppression was to convert the concluding part of the paragraph into a substantive engagement instead of a mere explanation of the first part. There can have been no concealment about the change, for in the draft which the Danzig delegation set out in their note of November 5th, the word "*et*" appears between the two sentences, and this makes the conversion of the draft paragraph into two separate undertakings clearer than it is in the text of Article 33 as signed.

It is conceivable that, in the haste and pressure of the negotiations at Paris, the importance of the change was insufficiently realized. At Geneva it was rightly regarded as a change which did not affect the League (see Viscount Ishii's report). But the text was in fact amended, and it is the text as amended which the Court is asked to interpret and which the High Commissioner must apply in deciding

disputes between Danzig and Poland. The effect of the change is that Poland is entitled to claim as against Danzig under Article 33 all the rights assured to her by Article 104 (5) of the Treaty of Versailles.

(Signed) CECIL J. B. HURST.